

File No.: EXP202304257

## RESOLUTION OF

### PROCEDURE OF WARNING

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

#### FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on March 14, 2023. The complaint is directed against B.B.B. with NIF \*\*\*NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The claimant states that he is a neighbor of the property adjacent to the property where the respondent resides and that the respondent has a surveillance camera installed on the façade of his home that is clearly oriented towards the claimant's residence, without having authorization for this.

The claimant provides video recordings that illustrate the situation and orientation of the camera in question.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was absent in delivery at the address established in the complaint, coinciding with that of the municipal register, on April 14 and 17, 2023, being returned on April 25, 2023, as it was not collected by the responsible party according to the certificate of impossibility of delivery that is in the file. A second attempt to forward was made on May 9 and 12 with a result of "Absent." It was "Returned to Origin due to Surplus (Not collected at the office)" on May 22, 2023, according to the certificate of impossibility of delivery that is in the file. Furthermore, this Agency requested information from the State Agency for Tax Administration in order to verify the address of the respondent, making a third attempt to forward to the address \*\*\*ADDRESS.1 on May 26, 2023, which was returned due to incorrect address on June 5, 2023, according to the acknowledgment of receipt that is in the file.

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THIRD: On June 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On October 5, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected on November 17, 2023, as stated in the acknowledgment of receipt that is in the file.

SIXTH: On November 27, 2023, a written statement of allegations was received from the respondent in which, in summary, the following considerations are made:

- He states that he has a surveillance camera installed on the façade of his home to protect himself from acts of vandalism he has suffered from his neighbor (the claimant), who has punctured his car tires and has verbally and physically threatened him on several occasions.

- He has filed a complaint against him in the Murcia court, dated January 14, 2023, report no. (...), still awaiting trial.

- Furthermore, the camera focuses on the façade of the speaker's property, but there is a large ficus, so it is slightly turned to avoid obstacles to the view.
- Lastly, the camera does not record anything; it only acts as a deterrent, therefore it is not violating any rights, but it does provide him protection against the violent acts of his neighbor, which are much more serious than pointing a camera at an empty patio. He believes that the right to protection and physical integrity prevails. All of this is pending a judicial resolution regarding the continuous attacks from the claimant.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

## PROVEN FACTS

FIRST: It is documented in the file that the respondent has a surveillance camera installed on the façade of his property that, as oriented, has access to the view of part of the claimant's residence.

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## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

### Unfulfilled obligation

The lawfulness of processing is covered in Article 6 of the GDPR and the processing of data for video surveillance purposes in Article 22.1 of the LOPDGDD.

According to Article 6 of the GDPR "Lawfulness of processing:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary for the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

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That is to say, the cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

And Article 22 of the LPDGDD:

"Processing for the purposes of video surveillance.

1.

Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

(...)

IV

Classification and qualification of the infringement

In accordance with the evidence available at this moment of resolution of the warning procedure, it is considered that the respondent has a video surveillance camera installed on the facade of their home that is manifestly oriented towards the home of the complainant, without having authorization for it. It is considered that the facts presented violate the provisions of Article 5 of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

"Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total global annual turnover of the previous financial year, opting for the higher amount: (...) a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9,".

The known facts could constitute an infringement, attributable to the respondent, according to the provisions of Articles 6 of the GDPR and 22.1 of the LOPDGDD, transcribed in the previous foundation.

For the purposes of the statute of limitations for infringements, the attributed infringement prescribes after three years, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

Article 72. Infringements considered very serious.

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

V

Sanction

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

For its part, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

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The procedure shall have a maximum duration of six months from the date of the initiation agreement. Once this period has elapsed, it will expire, and consequently, the proceedings will be archived. The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.

In the present case, given the circumstances surrounding this procedure, it is deemed appropriate to issue a warning for the infringement of the violated article.

VI

Allegations

The respondent states that they have installed a surveillance camera on the façade of their home to

protect themselves from acts of vandalism suffered at the hands of their neighbor (the claimant), who has punctured the tires of their car, and that the use of this camera is solely for deterrent purposes. When the capture of images is limited exclusively to the interior of the home, it is considered to be carried out in the exercise of a personal or domestic activity, to which this regulation does not apply. It will only apply when the cameras can capture images of people outside the home. In this case, the camera, which, according to the respondent, is slightly tilted because a plant obstructs their view, is oriented in such a way that both their own home and the patio and entrance of the neighboring home are visible.

The facts listed in the complaint filed with the Civil Guard are not considered relevant for this procedure, as they do not affect the fact of having a video surveillance camera installed, which is what concerns this resolution.

Therefore, these allegations are understood to be dismissed by this Agency.

## VII

### Adoption of Measures

Article 58.2 d) of the GDPR indicates that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. In this case, the respondent must proceed, within 30 days from the receipt of this resolution, to:

- Provide proof of having removed the camera from its current location or reoriented it in such a way that the viewing of the images evidences that the neighboring home is not captured.

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It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF \*\*\*NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF \*\*\*NIF.1, that pursuant to article 58.2.d) of the GDPR, within 30 days, provide proof of having complied with the removal of the camera from its current location or its reorientation, in such a way that the viewing of the images evidences that the neighboring home is not captured.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party

expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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